

Archival Source Packet

Jurisdiction	Oakland, CA
County	Alameda County
Official Code / Document Title	Oakland Planning Code, Chapter 17.120 - Performance Standards, Section 17.120.050 - Noise
Chapter / Section(s) Included	Chapter 17.120, Section 17.120.050 (decibel limits by land use, construction/demolition noise standards and hours)
Issuing Authority	City of Oakland (codified via Municode)
Canonical Official URL(s)	https://library.municode.com/ca/oakland/codes/planning_code?nodeId=TIT17PL_CH17.120PEST_17.120.050NO
Access Date	2026-07-25
Effective / Amended Date	Not explicitly displayed on source

Archival cover sheet — not part of the official ordinance text.

17.120.050 - Noise.

All activities shall be so operated that the noise level inherently and regularly generated by these activities across real property lines shall not exceed the applicable values indicated in Subsection A., B., or C. as modified where applicable by the adjustments indicated in Subsection D. or E. Further noise restrictions are outlined in Section 8.18.010 of the Oakland Municipal Code.

A.

Residential Zone Noise Level Standards. The maximum allowable noise levels received by any Residential Zone are described in Table 17.120.01.

Table 17.120.01 establishes the maximum allowable receiving noise levels:

TABLE 17.120.01

MAXIMUM ALLOWABLE RECEIVING NOISE LEVEL STANDARDS, RESIDENTIAL AND CIVIC

20

60

45

10

65

50

5

70

55

1

75

60

0

80

65

B.

Commercial Noise Level Standards. The maximum allowable noise levels received by any land use activity within any Commercial Zone (including the Housing and Business Mix HBX Zones, and the Central Estuary District D-CE-3 and D-CE-4 Zones) are described in Table 17.120.02.

Table 17.120.02 establishes the maximum allowable receiving noise levels:

TABLE 17.120.02

MAXIMUM ALLOWABLE RECEIVING NOISE LEVEL STANDARDS

20

65

10

70

5

75

1

80

0

85

C.

Industrial, Agricultural and Extractive Noise Level Standards. The maximum allowable noise levels received by any land use activity within any Industrial Zone are described in Table 17.120.03.

Table 17.120.03 establishes the maximum allowable receiving noise levels:

TABLE 17.120.03

MAXIMUM ALLOWABLE RECEIVING NOISE LEVEL STANDARDS, dBA

20

70

10

75

5

80

1

85

0

90

D.

In the event the measured ambient noise level exceeds the applicable noise level standard in any category above, the stated applicable noise level shall be adjusted so as to equal the ambient noise level.

E.

Each of the noise level standards specified above in Subsections A., B., and C. shall be reduced by five (5) dBA for a simple tone noise such as a whine, screech, or hum, noise consisting primarily of speech or music, or for recurring impulse noise such as hammering or riveting.

F.

Noise Measurement Procedures. Utilizing the "A" weighing scale of the sound level meter and the "slow" meter response (use "fast" response for impulsive type sounds), the noise level shall be measured at a position or positions at any point on the receiver's property. In general, the microphone shall be located four (4) to five (5) feet above the ground; ten (10) feet or more from the nearest reflective surface, where possible. However, in those cases where another elevation is deemed appropriate, the latter shall be utilized. If the noise complaint is related to interior noise levels, interior noise measurements shall be made within the affected residential unit. The measurements shall be made at a point at least four (4) feet from the wall, ceiling or floor nearest the noise source, with windows in the normal seasonal configuration.

G.

Temporary Construction or Demolition Which Exceed the Following Noise Level Standards.

1.

The daytime noise level received by any Residential, Commercial, or Industrial land use which is produced by any nonscheduled, intermittent, short-term construction or demolition operation (less than ten (10) days) or by any repetitively scheduled and relatively long-term construction or demolition operation (ten (10) days or more) shall not exceed the maximum allowable receiving noise levels described in Table 17.120.04.

Table 17.120.04 establishes the maximum allowable receiving noise levels:

TABLE 17.120.04 MAXIMUM ALLOWABLE RECEIVING NOISE LEVEL STANDARDS, dBA

Short-Term Operation

Residential

80

65

Commercial, Industrial

85

70

Long-Term Operation

Residential

65

55

Commercial, Industrial

70

60

2.

The nighttime noise level received by any land use and produced by any construction or demolition activity between weekday hours of seven (7) p.m. and seven (7) a.m. or between eight (8) p.m. and nine (9) a.m. on weekends and federal holidays shall not exceed the applicable nighttime noise level standards outlined in this Section.

H.

Residential Air Conditioning Units and Refrigeration Systems. The exterior noise level associated with a residential air conditioning unit or refrigeration systems shall not exceed fifty (50) dBA, with the exception that systems installed prior to the effective date of this Section shall not exceed fifty-five (55) dBA.

I.

Commercial Refrigeration Units. Stationary and mobile commercial refrigeration units shall not produce a noise level greater than the noise level standards set forth in this Section. Between the hours of ten (10) p.m. and seven (7) a.m., a mobile refrigeration unit shall not be located within two hundred (200) feet of any Residential Zone boundary unless such unit is within an enclosure which reduces the noise level outside the enclosure to no more than sixty (60) dBA and reduces vibration to a level below the vibration perception threshold set forth in Section 17.120.060 .

J.

Commercial Exhaust Systems. Unnecessary noise caused by exhaust from ventilation units, or other air control device shall not produce a noise level greater than the noise level standards set forth in this Section between the hours of ten p.m. and seven a.m. and shall not be located within two hundred (200) feet of any Residential Zone boundary unless such unit is within an enclosure which reduces the noise level outside the enclosure to no more than sixty (60) dBA and reduces vibration to a level below the vibration perception threshold set forth in Section 17.120.060 .

(Ord. No. 13357, § 3(Exh. A), 2-16-2016; Ord. No. 13302, § 5(Exh. C), 4-21-2015; Ord. No. 13251, § 5(Exh. A), 7-29-2014; Ord. No. 13172, § 3(Exh. A), 7-2-2013; Ord. No. 13168, § 5(Exh. A-2), 6-18-2013; Ord. 12875 § 2(part), 2008; Ord. 12872 § 4 (part), 2008; Ord. 11895 § 7, 1996: prior planning code § 7710)